CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

THIRD SECTION

DECISION

Application no. 18516/05
by Sargis AMIRYAN
against Armenia (no. 2)

The European Court of Human Rights (Third Section), sitting on 15 November 2007 as a Chamber composed of:

Mr B.M. ZUPANČIČ, *President*,
Mr C. BÎRSAN,
Mrs E. FURA-SANDSTRÖM,
Mrs A. GYULUMYAN,
Mr E. MYJER,
Mr DAVID THÓR BJÖRGVINSSON,
Mrs I. ZIEMELE, *judges*,

and Mr S. Quesada, *Section Registrar,*

Having regard to the above application lodged on 19 August 2004,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together,

Having regard to the applicant's letter of 26 July 2007 whereby he expressed his wish to withdraw the application,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Sargis Amiryan, is an Armenian national who was born in 1948 and lives in Ashtarak, Armenia. He was represented before the Court by Mr M. Muller, Mr T. Otty, Mr K. Yildiz and Ms A. Stock, lawyers practising in London, and Mr T. Ter-Yesayan and Mr S. Zohrabyan, lawyers practising in Yerevan. The Armenian Government ("the Government") were represented by their Agent, Mr G. Kostanyan,

Representative of the Republic of Armenia at the European Court of Human Rights.

The facts of the case, as submitted by the applicant, may be summarised as follows.

In March-April 2004 Armenia's political opposition organised a series of demonstrations calling for President Kocharyan's resignation. The applicant took part in these demonstrations.

On 13 April 2004 the applicant was taken to the Ashtarak Town Police Department by two police officers.

At the police station an administrative case was prepared against the applicant who was accused of using offensive language in a public place and disobeying the lawful orders of police officers. According to the applicant, the real reasons for his arrest and accusation were his political affiliation and his continuing participation in the demonstrations.

On the same date, the applicant was taken to the Aragatsotn Regional Court (*Արագածոտնի մարզի առաջին ատյանի դատարան*) which imposed on him a fine of 1,000 Armenian drams (AMD) (approx. EUR 1.5 at the material time) under Article 182 of the Code of Administrative Offences for maliciously disobeying the lawful orders of the police officers.

COMPLAINTS

The applicant complained under Article 5 §§ 1 and 2 of the Convention that his arrest was arbitrary and that he was not adequately informed of the legal and factual nature of his arrest. He further complained that the administrative proceedings against him and the fine imposed were in violation of the guarantees of Article 5 § 4, Article 6 §§ 1 and 3 (a-d), Articles 10, 11, 13 and 14 of the Convention and Article 3 of Protocol No. 1.

THE LAW

By a letter of 26 July 2007 the applicant informed the Court that he wished to withdraw his application lodged with the Court and that he had no claims to the Government in connection with his application.

The Government submitted no comments concerning this request.

Having regard to the above letter, the Court considers that the applicant does not intend to pursue his application within the meaning of Article 37 § 1(a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require a

continued examination of the application. Accordingly, Article 29 § 3 of the Convention should no longer apply to the case and it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Santiago QUESADA
Registrar

Boštjan M. ZUPANČIČ
President